Privacy Policy

Software Products Guilda Ltd. (referred to as "**The Guild**", "**we**", "**us**" or "**our**" in this Privacy Policy) respects your privacy and is committed to protecting your Personal Data. This Privacy Policy (the "**Privacy Policy**") is designed to inform you as to how we handle your Personal Data in connection with your use of our Platform and to notify you about your privacy rights and how the law protects such rights. "**Personal Data**" means any information about an individual from which that person can be identified.

Capitalized terms used but not otherwise defined in this Privacy Policy shall have the meanings ascribed to such terms in the Terms of Use (available at: https://graphql-hive.com/terms-of-use.pdf).

We encourage you to read this Privacy Policy carefully and to regularly check this page to review any changes we might make to the terms of this Privacy Policy. This Privacy Policy supplements other policies we may provide as part of our interactions with you or policies you may have received from other controllers and is not intended to override such policies.

To the extent that the European General Data Protection Regulation ("**GDPR**") or the UK Data Protection Act 2018, as well as the GDPR as it forms part of the law of England and Wales ("**UK GDPR**") apply personal data that we process in accordance with this Privacy Policy, we act as act as a "data controller" with respect to such processing.

This Privacy Policy is provided in a layered format so you can click through to the specific areas set out below.

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The Data We Collect About You

When you use our Platform or contact us through it, we (or third party service providers on our behalf) may collect the following types of Personal Data on you:

- **Identity Data** includes your user ID, password, age and picture.
- **Contact Data** includes email address.
- **Payment Data** includes payment method information and billing address.
- **Usage Data** includes information about how you use or interact with our Platform (such as, when you entered the Platform, how long you stayed in the Platform and/or a feature in the Platform).
- **Technical Data** includes information on your internet connection (such as your IP address and internet service provider name), on the device and software that you are using to access the Platform (e.g., your web browser type and computer operating system).
- **Additional Inquiry Data** includes additional information that you may provide when you contact us through the Platform or when you sign up for any of our services.

You may register to the Platform via your Google or GitHub account. In such case, we may collect additional Identity Data (such as your first and last name, profile picture), Technical Data (such as IP address) and other details received from such companies.

We also collect, use and share aggregated data such as statistical data for any purpose. Such information does not reveal your identity and therefore is not considered Personal Data. For example, we may aggregate your Usage Data to calculate the percentage of users accessing a specific feature available through the Platform.

Protecting the Privacy Rights of Third Parties

If you provide to us any Personal Data relating to others, you must make sure that you have permission to do so.

How We Collect Your Personal Data

We use different methods to collect data from and about you including through:

- **Direct interactions**. When you register to use the Platform, contact us through our Platform, or otherwise provide your Personal Data directly to us, you will be asked to provide us with your Identity Data and Contact Data so that we can

provide our services to you, respond to your questions or requests or otherwise contact you. You may also provide Additional Inquiry Data in such instances.

- **Automated technologies or interactions.** As you interact with our Platform, we automatically collect the applicable Technical Data and Usage Data. We collect this data by using cookies, server logs, and other similar technologies.
- **Third parties or publicly available sources.** We may receive Technical Data and Usage Data about you from third parties, such as Usage Data and Technical Data that we may receive from analytics providers, and from advertising and marketing partners.

You are not legally obligated to provide any Personal Data to The Guild. Any Personal Data that you choose to provide to The Guild, is provided at your own free will.

How We Use Your Personal Data

We will only use your Personal Data when permitted by law. We will commonly use your Personal Data in the following circumstances:

- Where the processing is necessary in connection with the performance of any contract we have entered into with you or where it is necessary for taking steps at your request prior to entering a contract.
- Where the processing is necessary for our legitimate interests (or those of a third party), and such legitimate interests are not overridden by your interests, fundamental rights, or freedoms. Legitimate interest means our interest in managing and conducting our business.
- Where the processing is necessary for compliance with a legal or regulatory obligation.
- Where you have provided your consent for such processing. Such consent can be revoked at any time.

Purposes for Which We Use Your Personal Data

Below is a description of the ways we use your Personal Data. To the extent that the GDPR and UK GDPR apply, we have mentioned the legal bases we rely on to use your Personal Data, and identified what our legitimate interests are where appropriate:

- We use your Identity Data and Contact Data to enter into a contract or to perform a contract with you. We also use your Usage Data and Technical Data for the performance of a contract with you (to provide our services to you via the Platform).
- We use your Contact Data and Additional Inquiry Data to respond to your requests or questions and to manage our relationship with you, including by notifying you about changes to our terms of use or Privacy Policy. We do so for the performance of a contract with you, if it is necessary to comply with a legal obligation or if it is necessary for our legitimate interests.
- We use your Usage Data, Technical Data, and Contact Data for marketing purposes and to deliver relevant and personalized content to you, as well as service messages (for example, for security purposes) including via email or text message (SMS), and to measure or understand the effectiveness of our marketing efforts. We do so where it is necessary for our legitimate interests (to grow our business, to inform our marketing strategy and to maintain and secure the services); or if we have obtained your prior consent (where laws require consent for such communications).
- We use your Usage Data and Technical Data to improve our Platform, services, marketing, customer relationships and experiences, including by personalizing and customizing our content. We do so where it is necessary for our legitimate interests (to keep our Platform updated and relevant, to develop our business and to inform our marketing strategy).
- In the event of a legal dispute between you (and/or a party on your behalf) to us (and/or a party on our behalf), we may use your Personal Data to the extent necessary in connection with handling such dispute. We do so where it is necessary for our legitimate interests (to defend and enforce our legal rights).
- We may also use your Personal Data as: (a) required by subpoena, law, or other legal process; (b) necessary to assist law enforcement officials or government enforcement agencies; (c) necessary to investigate violations of or otherwise enforce our terms of use, to maintain security of the Platform and prevent fraudulent or illegal activity; (d) necessary to protect us from legal action or claims from third parties, including you and/or other users or members; or (e) necessary to protect the legal rights, personal/real property, or personal safety of our company, users, employees, and affiliates. We do so based on our legitimate interest (to defend and enforce our legal rights and to protect and ensure the continuous operation of our Platform).

Note that we may process your Personal Data for more than one lawful ground depending on the specific purpose for which we are using your data.

Promotional Offers

You will receive marketing communications from us if you have requested information from us and you have not opted out of receiving marketing communications.

You can change your contact preferences at any time through your account or by sending us an email with your request to: contact@the-guild.dev. If you wish to stop receiving marketing communications from us, you may ask us to stop sending you marketing communications at any time by following the opt-out link on any marketing message sent to you or by contacting us.

Cookies and Other Tracking Technologies

Our Platform uses cookies. A cookie is a small piece of data or a text file that is downloaded to your computer or mobile device when you access certain websites. Cookies may contain text that can be read by the web server that delivered the cookie to you. The text contained in the cookie generally consists of a sequence of letters and numbers that uniquely identifies your computer or mobile device; it may contain other information as well. On our website, the-guild.dev, the only cookies set are those strictly necessary for security, such as the bot-protection cookie set by Cloudflare, and, if you choose to open the chat, the cookies Crisp needs to keep your conversation. No analytics or advertising cookies are set on the website. The Hive Console (app.graphql-hive.com) uses cookies to sign you in, keep your session and remember your choices. The categories below describe the kinds of cookies the Platform may use and how you can control them.

Types of cookies:

- **Strictly Necessary Cookies**. These cookies are necessary for proper functioning of the Platform, such as displaying content, logging in, validating your session, responding to your request for services, and other functions.
- **Performance Cookies**. These cookies collect information about the use of the Platform, such as pages visited, traffic sources, users' interests, content management, and other Platform measurements.
- **Functional Cookies**. These cookies enable the Platform to remember a user's choices – such as their language, user name, and other personal choices – while using the Platform. They can also be used to deliver services, such as

letting a user make a blog post, listen to audio, or watch videos on the Platform.

- **Media Cookies**. These cookies can be used to improve the Platform's performance and provide special features and content. They can be placed by third parties who provide services to us or by our company.
- **Advertising or Targeting Cookies**. These cookies are usually placed and used by advertising companies to develop a profile of your browsing interests and serve advertisements on other websites that are related to your interests. You will see less advertising if you disable these cookies.
- **Session Cookies**. These cookies allow websites to link the actions of a user during a browser session. Session cookies permit users to be recognized as they navigate a website so that any item or page changes they make are remembered from page to page. Session cookies expire after a browser session; thus, they are not stored long term.
- **Persistent Cookies**. These cookies are stored on a user's device in between browser sessions, which allows the user's preferences or actions across a site (or, in some cases, across different sites) to be remembered. Persistent cookies may be used for a variety of purposes, including remembering users' choices and preferences when using a website or to target advertising to them.

Most web browsers can be set to disable the use of cookies. However, if you disable cookies, you may not be able to access features on our Platform correctly or at all. Further details on how to disable cookies in different web browsers can be found here:

Microsoft Edge: https://support.microsoft.com/en-us/windows/manage-cookies-in-microsoft-edge-view-allow-block-delete-and-use-168dab11-0753-043d-7c16-ede5947fc64d

Google Chrome: https://support.google.com/chrome/answer/95647?hl=en

Firefox: https://support.mozilla.org/en-US/kb/enable-and-disable-cookies-Platform-preferences

Safari: https://support.apple.com/guide/safari/manage-cookies-sfri11471/mac

On our website, no third party sets cookies or stores identifiers in your browser for measurement or advertising; usage is measured only by the cookieless Cloudflare Web Analytics script described below. Service providers that help us run the Platform, such as those listed below, may set the cookies required to deliver their service.

Our website, the-guild.dev, uses Cloudflare Web Analytics to measure how it is used. It reports aggregated page views, referrers, countries, browsers and page performance, does not set cookies, does not use other client-side state to identify or track visitors, and does not follow you across sites. For more information, see Cloudflare's privacy policy at https://www.cloudflare.com/privacypolicy/. The chat widget on our website is provided by Crisp. It is loaded only when you open the chat; from that point Crisp stores the cookies and local data needed to keep your conversation, as described in its privacy policy at https://crisp.chat/en/privacy/.

In addition, we use **Zendesk** for providing customer support and ticket management. For additional information, please use this link: https://www.zendesk.com/company/legal/

Third-Party Links

The Platform may include links to third-party websites, plug-ins and applications. Clicking on those links or interacting with such content may allow your data to be shared with the relevant third-party. We do not control these third-party websites and are not responsible for their privacy statements; we therefore recommend that you read the privacy policy of every websites you visit.

Sharing Your Personal Data with Third Parties

We share Personal Data with third party service providers that provide us services in connection with the purposes listed above, including cloud infrastructure, logs processing, payment services, analytical tools, identity management, email and marketing service providers and other vendors that assist us in maintaining the Platform. For example, we may share your applicable Identity Data, Contact Data, Usage Data and Technical Data with such service. For additional information, please see also the description above in the section titled Cookies and Other Tracking Technologies.

We may also share your Personal Data with legal and regulatory authorities to the extent required by

applicable law our professional advisors (e.g. lawyers, accountants) to the extent necessary for the provision of their services to us; and third parties to whom we may choose to sell, transfer, or merge our business (or parts thereof) or our assets, or parties whose business we wish to acquire.

Minors

In order to use the Platform, you must be at least 13 years of age, or older, if otherwise required by the laws of the country you reside in. Our Platform is not designed for use by anyone under the age of 13 and we do not knowingly collect Personal Data from children under the age of 13.

If you are a parent or legal guardian and have concerns about your child's privacy, or if you believe that your child may have provided us with their Personal Data, please contact us using the Contact Details below. When you approach us as a parent or legal guardian, we may request that you provide certain information needed to confirm your identity, in order to prevent malicious removal of account information.

If you are not 18 years old (or older, if otherwise required by the laws of the country you reside in) you must review this Privacy Policy with your parent or legal guardian.

International Transfers

We may transfer your Personal Data to countries outside of the country in which you reside (including outside of the territory of the European Union or the United Kingdom (UK)), that do not necessarily provide the same level of data protection as the country in which you reside and are not recognized by the European Commission and/or the applicable UK authority as providing an adequate level of data protection.

Our transfers of Personal Data outside of the territory of the European Union or the UK are done for the performance of a contract or implementation of pre-contractual relations with you, based on your consent, or subject to safeguards that ensure the protection of your Personal Data, such as standard contractual clauses approved by the European Commission and/or the applicable UK authority.

Data Security

We have put in place security measures to prevent your Personal Data from accidental or unlawful loss, use, alteration or disclosure. We also maintain technical and physical safeguards to protect your Personal Data.

Unfortunately, we cannot guarantee against the loss or misuse of your Personal Data or secure data transmission over the Internet because of its nature.

Data Retention

We retain your Personal Data for as long as necessary to fulfil the purposes we collected it for, including for legal or reporting requirements.

In order to determine the appropriate retention period for Personal Data, we consider the following

criteria: the volume, nature, and sensitivity of the Personal Data, the potential risk of harm from unauthorized use or disclosure of Personal Data, the purposes for which we collect and process Personal Data, the timeframe during which we may require such Personal Data in connection with potential litigation, and applicable legal requirements.

Your Rights

Certain privacy laws, including the GDPR and UK GDPR, provide users with rights related to their Personal Data. To the extent that such laws apply to your Personal Data, you may have the following rights:

- **Request access**. This means that you may receive a copy of the Personal Data we hold about you.
- **Request correction**. This means that you may ask us to correct or complete inaccurate or incomplete data that we hold about you.
- **Request erasure**. This means that you may ask us to delete or remove Personal Data that we hold about you. If we are unable to comply with such request, we will notify you of the specific legal reasons for our decision.
- **Object to processing**. This means that you may object to the processing of your Personal Data where it is used for direct marketing purposes, or where we are relying on a legitimate interest and you feel that such interest is overridden by your rights and freedoms.
- **Request restriction of processing**. This means that you may ask us to suspend the processing of your Personal Data if you believe that such data is inaccurate, if our processing is unlawful or if we no longer need to process such data for a particular purpose, but you need us to continue to hold the data.
- **Data Portability.** This means that you may request that we transfer your Personal Data to you or to a third party. This right applies where we have obtained and processed the data from you based on your consent or where we used the information to perform a contract with you.
- **Withdraw consent at any time.** This means that you may withdraw your consent where we are processing your Personal Data based on your consent.

If you wish to exercise any of the rights set out above, please *contact us*.

What We May Need From You

When you approach us with a request to exercise one of your rights, we may request that you provide us with information needed to confirm your identity as a security measure to ensure that your Personal Data is not disclosed to any person who has no right to receive it.

Time Limit to Respond

We try to respond to all legitimate requests within one month or less, if required by law. Where it takes us more than one month to respond (for example, where your request is particularly complicated or where you have made a number of requests) we will notify you and keep you updated.

Accessibility

If you have a disability and would like to access this policy in an alternative format, please contact us via our Contact Details listed below.

Contact Details

If you have any questions or concerns, please contact us at:

Email: contact@the-guild.dev

Postal address: HaDkalim 2, Rosh Haayin, 4881000, Israel

You have the right to make a complaint at any time to data protection authorities. We would, however, appreciate the chance to address your concerns before you approach a data protection authority, so please contact us in the first instance.

Changes to this Privacy Policy

We reserve the right to change this Privacy Policy at any time. If we do so, we will post an updated version of this Privacy Policy so that our users and customers are always aware of what information we collect, use, and disclose. Your continued use of our Platform and services after any change to this Privacy Policy will constitute your acceptance of such change.

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